KEYSTONE (4696) · MOCK-UP FOR APPROVAL

First Guardian Complaints website

A standalone claims site operated by Banton Group. Not live. Prepared 29 September 2026.

What follows

- Page 2: the full page as it would appear on a desktop browser.
- Page 3: the same page on a mobile phone.

How the site is pitched

- A standalone First Guardian site, one of two campaign streams (the other is Shield). It is built for the First Guardian cohorts: Diversa and NQ Super investors who have not been repaid, Netwealth investors whose capital was repaid, and the Venture Egg and Rhys Reilly (InterPrac) clients.
- It leads with the fact that AFCA is free and that investors can complain themselves, with links to AFCA and the ASIC-funded Take Your Super Back tool. That matches what ASIC and AFCA tell investors, and it is what separates us from claims agents.
- It then sets out the eight situations where our help is most likely to change the outcome, and the 1 July 2027 date that matters for CSLR.
- Fees: free assessment; no win, no fee; nothing upfront; a fixed fee of $5,000 including GST, payable only from compensation received.
- It carries a scam warning, a factual list of the class actions already filed, and a short intake form that feeds Formstack and Actionstep.

Open before launch

- Form of the conditional costs agreement and costs disclosure.
- Domain name, hosting, privacy collection statement and terms of use.
- Compliance read of all copy against r 36 of the *Australian Solicitors' Conduct Rules 2015* and the Australian Consumer Law before any advertising runs.
- Facts on the "Where things stand" panel to be refreshed on launch day.

A service of **Banton Group**, class action and litigation lawyers, Sydney Call **(02) 8076 8090**

First Guardian Complaints
Help with AFCA and CSLR claims, from Banton Group

When we can help · How it works · Fees · Questions · Free assessment

FIRST GUARDIAN MASTER FUND (FALCON CAPITAL)

Lost superannuation in the First Guardian Master Fund?

Make sure your complaint to AFCA is complete, correct and made in time. We will assess your position free of charge, and act for you on a no win, no fee basis where our help will make a difference.

Get a free assessment · Or complain yourself, for free

✓ Free assessment ✓ Nothing to pay upfront ✓ No win, no fee

THE DATE THAT MATTERS

1 July 2027

If your adviser's business has collapsed, the Compensation Scheme of Last Resort can pay an AFCA award up to $150,000. The Government has announced that for complaints made after 30 June 2027 the Scheme is to pay only actual losses, not the returns you would otherwise have earned. Lodging before then keeps your full claim open.

Source: Treasury fact sheet, 18 August 2026. The change has been announced but is not yet law.

$0

You can complain to AFCA yourself, and it is free

AFCA does not charge you, and you do not need a lawyer to use it. ASIC has funded a free online tool to help you prepare a complaint. If your situation is straightforward, we will tell you so and point you to these resources rather than act for you.

afca.org.au

takeyoursuperback.com

WHEN OUR HELP IS WORTH HAVING

Some complaints are not straightforward

These are the situations where a lawyer is most likely to change the outcome for First Guardian investors. If one of them applies to you, ask us for a free assessment.

01

You invested through a Diversa fund

Members of Diversa-trusteed funds, such as Australian Practical Super and the Powerwrap, MAP and Praemium options, have not been repaid. ASIC is suing Diversa.

02

You invested through NQ Super

Equity Trustees members who invested in First Guardian have not been repaid. ASIC is suing the trustee, but that case will not be heard before 2027.

03

Netwealth repaid your capital

You may still be owed the returns you would have earned in your old fund. We check the comparison AFCA uses.

04

You were advised through InterPrac

Venture Egg and Rhys Reilly advised under InterPrac's licence. AFCA has paused decisions on InterPrac complaints while InterPrac's court case against AFCA runs.

05

More than one adviser or platform

Every responsible firm needs to be identified and included in your complaint, or you may leave compensation behind.

06

You used an SMSF

Your fund is the complainant, and the cost of winding up the SMSF can form part of the claim.

07

Your loss is over $150,000, or you lost insurance

The Scheme's cap is $150,000, and life, TPD or trauma cover lost on the switch can be part of the claim. We look at what else can be recovered.

08

You are in a class action or offered a deed

We check how the Netwealth class action affects your complaint, and whether any deed or settlement asks you to give up other rights, including rights against Diversa.

WHERE THINGS STAND

What has happened with First Guardian

FEBRUARY 2025

ASIC freezes Falcon's assets

The Federal Court froze the assets of Falcon Capital, First Guardian's responsible entity.

APRIL 2025

Falcon wound up

The Court ordered Falcon to be wound up and appointed liquidators to wind up First Guardian. The liquidators have warned that recoveries may be small.

DECEMBER 2025

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ASIC is suing Diversa over about $300 million invested in First Guardian, seeking compensation for members.

JANUARY 2026

Netwealth repays capital

Netwealth paid about $101 million to members who invested in First Guardian.

MAY AND JULY 2026

More ASIC cases

ASIC sued Equity Trustees over NQ Super members' investments, and sued First Guardian's auditor over its audit reports.

NOW

AFCA and the Scheme

InterPrac complaints are paused until at least February 2027, other complaints continue, and the Scheme is waiting for funding.

Last updated 29 September 2026. Sources: ASIC, AFCA and CSLR publications and court records.

HOW IT WORKS

Five steps

1

Tell us about it

Complete the form and upload any statements, advice documents or letters you have.

2

Free assessment

We tell you whether you need us. If you do not, we say so and point you to free help.

3

We prepare your complaint

If we act, we identify every responsible firm and prepare and lodge your complaint with AFCA.

4

We deal with AFCA

We respond to the firms and to AFCA and check AFCA's loss calculation.

5

The Scheme, if needed

If your adviser cannot pay, we make your claim to the Compensation Scheme of Last Resort.

No win, no fee

Nothing to pay upfront.

Free initial assessment.

A **fixed fee of $5,000, including GST**, agreed in writing before we start.

Payable **only from compensation** you receive. If you receive nothing, you pay nothing.

You have **five business days** to change your mind after signing.

ABOUT OUR FEES

What you are paying for

AFCA and the Compensation Scheme of Last Resort do not charge you. Our fee is for our work on your complaint, not for access to AFCA.

Where a complaint is complex, we will ask AFCA to order the financial firm to contribute to your legal costs. AFCA usually caps a contribution at $5,000 and does not always make one. Any contribution reduces what you pay us.

We only take on a complaint where the likely compensation is well above our fee. Before you sign anything we will give you a written costs agreement and disclosure explaining the fee, when it is payable and your rights.

CLASS ACTIONS

Class actions already filed

Another law firm has started this class action against Netwealth. We are not acting in it. If you are a group member, we will check how it affects your complaint. No class action has been filed for Diversa or NQ Super members.

Proceeding	Court	Law firm	Who it covers
Langby v Netwealth Investments Limited	Supreme Court of Victoria, S ECI 2026 06462	Keily McCrosson	Netwealth Superannuation Fund members who invested in First Guardian between 26 March 2021 and 27 May 2024

Current at 29 September 2026, from court records and the firm's published information.

!

Beware of recovery scams

ASIC has warned about people offering to recover lost superannuation in return for money paid in advance or a share of your compensation. We will never ask you for an upfront payment, a deposit, a bond or a "tax". Banton Group is a law practice regulated in New South Wales. If you are unsure whether a message is from us, call our office on (02) 8076 8090.

FREE ASSESSMENT

Tell us about your First Guardian investment

It takes about five minutes. We will review what you send and contact you within five business days. Sending us your details does not commit you to anything.

If you have already complained to AFCA, include your AFCA complaint number and we will review where it has got to.

First name:
Last name:
Email:
Mobile:
Platform or super fund: Diversa fund, NQ Super, Netwealth, SMSF, other
Adviser or licensee: InterPrac (Venture Egg, Rhys Reilly), FSGA, UGC, other
Amount invested (approximate): $
Has Netwealth repaid your capital? Select
Complained to AFCA already? Select
Invested through an SMSF? Yes / No
Anything else we should know:

Upload statements, statements of advice or letters (optional)

☐ I agree to Banton Group contacting me about my investment and complaint.
☐ I have read the Privacy Collection Statement.

Send for free assessment

QUESTIONS

Common questions

Do I need a lawyer to complain to AFCA?

No. AFCA is free and designed to be used without a lawyer. We act only where your circumstances make our involvement worthwhile, and we will tell you if they do not.

Netwealth repaid my money. Do I still have a claim?

Possibly. AFCA's approach is to put you where you would have been in your previous fund, which can include lost returns after allowing for the repayment.

Will I get anything from First Guardian itself?

The liquidators are pursuing recoveries but have warned investors to expect little. A complaint against your adviser does not depend on those recoveries.

I invested through a Diversa fund and have not been repaid.

You can complain to AFCA about your adviser now. ASIC's case against Diversa seeks compensation for members, but the trustee is defending it.

My adviser was with Venture Egg or Rhys Reilly. What now?

They advised under InterPrac's licence. AFCA is still accepting and investigating InterPrac complaints, but will not make decisions until InterPrac's case against AFCA ends. Make your complaint now so it is in the queue.

How much will it cost me?

Nothing upfront, and nothing if your complaint does not succeed. If you receive compensation, our fixed fee is $5,000 including GST, paid from that compensation. AFCA itself is free.

Banton Group

Level 12, 60 Martin Place
Sydney NSW 2000

(02) 8076 8090

Free help

Australian Financial Complaints Authority: afca.org.au

Take Your Super Back: takeyoursuperback.com

Compensation Scheme of Last Resort: cslr.org.au

This site

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